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Chapter 7 Trustee

UNITED STATES BANKRUPTCY COURT

CENTRAL DISTRICT OF CALIFORNIA

LOS ANGELES DIVISION

In re:
EXAMPLE DEBTOR, LLC,
Debtor.

Case No. 2:26-bk-00001-ZZ
Chapter 7

TRUSTEE'S NOTICE OF MOTION AND MOTION FOR ORDER (1) APPROVING SALE OF REAL PROPERTY FREE AND CLEAR OF LIENS, AND (2) APPROVING OVERBID PROCEDURES; MEMORANDUM OF POINTS AND AUTHORITIES

Date: [date set under LBR 9013-1(b)]
Time: [time]
Place: Courtroom [____]
[Courthouse address]

NOTICE OF MOTION

PLEASE TAKE NOTICE that [Name], the Chapter 7 trustee (the "Trustee") of the bankruptcy estate of Example Debtor, LLC (the "Debtor"), will and hereby does move the Court for an order (1) approving the sale of the Debtor's real property commonly known as [street address] (the "Property") to [buyer], free and clear of liens, claims and interests under 11 U.S.C. § 363(b) and (f), and (2) approving the overbid procedures described in the Motion.

The hearing on the Motion will be held on the date, at the time and in the courtroom stated above. The Motion is brought under LBR 9013-1(c) and (d).

PLEASE TAKE FURTHER NOTICE that LBR 9013-1(f) requires a written response to

the Motion to be filed and served at least 14 days before the hearing, and that any reply must be filed and served not later than 7 days before the hearing, under LBR 9013-1(g).

MOTION

The Trustee moves for the following relief:

1. An order authorizing the sale of the Property to the buyer for $[amount], subject to higher and better offers at the hearing;
2. An order that the sale is free and clear of all liens, claims, encumbrances and interests under 11 U.S.C. § 363(f), with liens to attach to the proceeds in the same priority;
3. An order approving the overbid procedures, the minimum overbid and the deposit requirement set out in the Motion; and
4. Such other relief as the Court deems just.

The Motion is based on this notice, the memorandum of points and authorities below, the declaration of [declarant] filed with the Motion, the records of this case, and any argument the Court permits at the hearing.

The Trustee states, under LBR 9013-1(c)(4), that the Trustee consents to the entry of a final order on this Motion by the bankruptcy judge, and that no objection to the Court's authority to enter such an order is raised.

MEMORANDUM OF POINTS AND AUTHORITIES

I. Introduction

This motion asks the Court to approve the sale of a single parcel of real property that is the Debtor's principal non-exempt asset. The Trustee has marketed the Property for [number] months, has received an offer above the appraised value, and seeks approval of a sale that will produce equity for creditors.

II. Facts

The Debtor filed a voluntary petition under chapter 7 on [date]. The Trustee was appointed on [date] and qualified as the trustee of the estate. The Property is the only real property the Debtor scheduled. The Debtor's schedules list a homestead exemption of $[amount], and the Trustee has determined that the equity in the Property above the exemption and all liens is [amount].

The Trustee obtained an appraisal dated [date], which values the Property at $[amount]. The Trustee then listed the Property with a broker approved by order of the Court on [date]. The listing produced [number] offers. The highest offer, from [buyer], is for $[amount], and is the subject of a purchase agreement attached to the declaration.

A. The liens

The title report dated [date] shows [number] recorded liens on the Property. Their total amount, as shown by the proofs of claim and the payoff statements, is $[amount]. The Trustee has given notice of the proposed sale to each lienholder.

III. Argument

A. The sale is a proper exercise of the Trustee's business judgment

1. The sale should be approved under section 363(b)

Under 11 U.S.C. § 363(b)(1), the trustee, after notice and a hearing, may use, sell or lease property of the estate other than in the ordinary course of business. A court approves such a sale where the trustee has a sound business reason for it, the sale is in good faith, and the price is fair and reasonable in the circumstances.

a. The sale price is fair

The price exceeds the appraised value by [percentage]. The Trustee marketed the Property for [number] months through a broker, and no other offer approached the price now proposed.

b. The sale is in good faith

The buyer is not an insider of the Debtor, and the purchase agreement contains no term that benefits any insider. The Trustee has no interest in the buyer.

2. The sale may be free and clear of liens

Under 11 U.S.C. § 363(f), the trustee may sell property free and clear of any interest in it if one of five conditions is met. Each lienholder either consents or will be paid in full from the sale proceeds at closing, so that its interest will attach to the proceeds with the same validity, priority and extent.

B. The overbid procedures are reasonable

The proposed overbid procedures set a minimum overbid of [amount], a deposit of [amount], and a hearing at which any higher offer will be considered. The procedures are designed to obtain the highest price for the estate and to give all interested parties a fair opportunity to bid.

1. The minimum overbid is [number] percent above the current offer.
2. Any qualified bidder must deposit $[amount] by [date].
3. The Trustee will report any overbid at the hearing and will ask the Court to approve the highest and best offer.

Stating these terms here is for the Court's review of their reasonableness. They are not a waiver of any term of the purchase agreement.

IV. Conclusion

For these reasons, the Trustee asks the Court to grant the Motion and enter the order described in it.

Dated: [Month Day, Year]

Respectfully submitted,

[FIRM NAME]

By: /s/ [Attorney Name]
[ATTORNEY NAME]
Attorneys for [Name], Chapter 7 Trustee